

23PSCV02124 23PSCV02124

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-09-29

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Case Number: 23PSCV02124 Hearing Date: September 29, 2026 Dept: G

Defendant

John Zhong's Motion for Reconsideration

Respondent:

Plaintiff City of Diamond Bar

TENTATIVE

RULING

Defendant

John Zhong's Motion for Reconsideration is DENIED.

BACKGROUND

This

is a nuisance abatement action. Defendants

John Zhong (Zhong) and Catherine Li (Li) are the alleged owners of real property

within the boundaries of plaintiff City of Diamond Bar (the City). Beginning in March 2022, Zhong and Li

(collectively, Defendants) allegedly used their real property for short-term

rentals in violation of Diamond Bar Municipal Code section 22.08.030. Defendants allegedly refused to comply

despite the City's notices of violation of the ordinance.

On

July 14, 2023, the City filed the Complaint, alleging causes of action for (1)

public nuisance and (2) public nuisance per se.

On

September 11, 2023, the City filed a notice of pendency of action (lis

pendens). On October 9, 2023, the court denied Defendants' motion to expunge lis pendens.

On December 18, 2023, Defendants filed a Cross-Complaint. On January 17, 2024, the court struck the Cross-Complaint without prejudice.

On August 13, 2026, Zhong filed this motion for reconsideration. On August 25, 2026, the City filed the opposition, and on September 1, 2026, Zhong filed the reply. On September 8, 2026, the court continued the hearing to permit Zhong to hire a court reporter.

The motion is set for a continued hearing on September 29, 2026.

ANALYSIS

Zhong moves for reconsideration of the court's August 12, 2026 order awarding the City's attorney's fees on appeal. For the following reasons, the motion is DENIED.

Legal Standard

Code of Civil Procedure section 1008 "specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section." (Code Civ. Proc., § 1008, subd. (e).)

Section 1008 sets out two means by which a party can seek reconsideration of a prior trial court order. First, "[w]hen an application for an order has been made to a judge, or to a court, and refused

in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Code Civ. Proc., § 1008, subd.

(a).) Second, “[a] party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.”

(Code Civ. Proc., § 1008, subd. (b).)

Disagreement with the court’s previous ruling is not a ground for reconsideration under Section 1008. (See *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

Discussion

Zhong's

motion requests reconsideration based on Section 1008, subdivision (a). (See Mot., p. 1.) Section 1008, subdivision (a) first requires that

the moving party file the motion within 10 days after service of the order. Zhong filed this motion the day after the challenged order and, as such, the court finds the motion was filed timely. (See Mot., p. 1; see also 8/12/2026 Min. Order, p. 1.) However, Section 1008, subdivision (a) also requires the moving party to base the motion on new or different facts, circumstances, or law.

The

court finds Zhong does not meet this requirement and failed to present testimony that was unavailable on or before the court’s August 12, 2026 ruling, a newly discovered billing entry, or new authority governing entitlement or amount. (See Mot., pp. 5–7; see also *Gilbred*, supra, 32 Cal.App.4th at 1500, deny reconsideration where the moving party “did not present any facts or authorities relating to the merits of the underlying motion that were not considered by the trial court when it issued its initial orders.”)

Since Zhong's motion fails to fulfill the requirements of Code of Civil Procedure section 1008, subdivision (a), the

motion for reconsideration is DENIED.

CONCLUSION

For

these reasons, the motion for reconsideration is DENIED.